



AshLe' Penn <ashlepenn.ap3@gmail.com>

Formal Request for Clarification of Authority, Appearance, and Client File – Shelter Hearing Representation

3 messages

AshLe' Penn <ashlepenn.ap3@gmail.com>
To: imahoney@mpdlaw.com
Bcc: 244458502@forward.na2.hubspot.com

Fri, Dec 12, 2025 at 1:59 PM

Ms. Mahoney,

I am writing to formally request clarification and documentation regarding your role, authority, and actions in connection with the shelter hearing held on or about **September 8, 2025**, in the juvenile dependency matter involving my daughter, Almira Davis. .

During our phone conversation on the date of that hearing, you stated to me that you **“represented me at the shelter hearing.”** You later stated that you could not communicate further with me unless I completed court-appointed counsel paperwork. I expressly declined to complete such paperwork because I had not been served with a summons or petition and did not submit to the juvenile court’s jurisdiction.

Given these facts, I am requesting the following information and materials so that the record can be accurately clarified.

1. Authority and Appointment

Please state clearly and in writing:

a. **Whether you contend that you represented me at the shelter hearing**, and if so:

- The **date and time** you believe representation began;
- The **source of your authority** to represent me (e.g., appointment order, assignment by the court, referral from defense services, etc.);
- The **identity of the person or entity** who appointed or assigned you; and
- Whether any **written order or record of appointment** exists.

b. If you contend that you **did not represent me**, please confirm that explicitly.

2. Appearance and Statements to the Court

Please identify:

- a. Whether you **entered an appearance**, formally or informally, at the shelter hearing on my behalf;
- b. Whether you **announced yourself to the court as counsel for mother** or otherwise spoke in a representative capacity;
- c. Any **statements you made to the court** regarding me, including but not limited to:
 - My participation or non-participation;
 - My position regarding jurisdiction, service, or cooperation;
 - Any purported waiver of rights, objections, or defects.

If any such statements were made, please indicate whether they were **oral or written**, and whether any transcript, minute entry, or filing reflects them.

3. Client File and Related Materials (RPC 1.16(d))

If you maintain that you represented me in any capacity, please provide **the complete client file**, including but not limited to:

- All notes, memoranda, or summaries created in connection with my case;
- All communications (emails, texts, notes of phone calls) with DHS, the AAG, court staff, or any other party referencing me or my case;
- Any documents received from DHS or the court prior to or after the shelter hearing;
- Any drafts, filings, or written materials prepared or considered on my behalf;
- Any internal records reflecting your assignment to this case;
- Any time records or billing entries (if applicable).

If you contend that no client file exists, please confirm that **explicitly in writing**.

4. Scope of Representation

Please state whether, at any time, you believed you had authority to:

- Appear in court on my behalf;
- Make representations to the court regarding my rights, position, or conduct;
- Decline to raise a jurisdictional objection based on lack of service after I expressly instructed you that service had not occurred and that jurisdiction was contested.

5. Timing

Please provide the above information and materials immediately, upon receipt of this email. Electronic delivery is acceptable.

This request is made for the purpose of correcting and clarifying the record in ongoing proceedings. It is made **irrespective of whether court-appointed counsel paperwork was executed**, as it concerns actions already taken and representations already made.

If you maintain that you did not represent me and did not appear on my behalf and did not enter an appearance on my behalf, please state that plainly so the record may be corrected accordingly.

Regards,
Ash Le’ Penn

Ireland Mahoney <imahoney@mpdlaw.com>
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Grace White <gwhite@mpdlaw.com>

Tue, Dec 16, 2025 at 3:31 PM

Hi Ms. Penn,

I have cc'd my supervisor who will respond to your inquiry.

Ireland Mahoney
Metropolitan Public Defender

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Friday, December 12, 2025 1:59:45 PM
To: Ireland Mahoney <imahoney@mpdlaw.com>
Subject: Formal Request for Clarification of Authority, Appearance, and Client File – Shelter Hearing Representation

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Grace White <gwhite@mpdlaw.com>
To: Ireland Mahoney <imahoney@mpdlaw.com>, AshLe' Penn <ashlepenn.ap3@gmail.com>

Thu, Dec 18, 2025 at 4:22 PM

Hello Ms. Penn,

Our office was asked to represent you if you were present at the shelter hearing and completed court-appointed attorney paperwork, thus Ms. Mahoney tried to reach you beforehand to relay this information to you. She was present at the hearing in case you did attend but you did not. Since you were not present at the shelter hearing and did not return the phone call prior to the hearing, our office did not make any representations on your behalf to the court at the shelter hearing.

Since that time, our office has identified a conflict in our potential representation of you so would not be able to be appointed on your case even if you did complete the court-appointed attorney paperwork.

We are no longer able to communicate with you in regard to this matter. If you have any further questions or concerns, please communicate those to ODHS or apply for counsel who can assist you.

Thank you,
Grace White

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